

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

21. CLARA STEWART V. FRANCISCO MARIN

SFL20190229

This matter is pending receipt and review of the 3111 report. The parties last appeared before the court on January 22, 2026 at which time the court made custody and visitation orders pending receipt of the 3111 report. A review hearing was set for the present date.

On March 2, 2026, Respondent filed a Request for Order (RFO) seeking child support, attorney's fees, sanctions and therapy orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were served on March 4, 2026.

Petitioner filed and served her Responsive Declaration to Request for Order and her Memorandum of Points and Authorities on March 19th. She filed and served an Amended Memorandum of Points and Authorities on March 20th and a Supplemental Declaration on March 24th.

The court received the Family Code section 3111 report on March 26, 2026.

Respondent submitted a Reply Declaration to the 3111 Report on April 10, 2026. It was served on Petitioner and Minor's Counsel the same day. Respondent requests the exchange location for non-school exchanges remain at Town Center, in El Dorado Hills as the parties have been exercising. Respondent also requests that short overnight trips on weekends required the parties to provide each other notice and provide the location of where the overnights will be taking place. Respondent also seeks clarification regarding the recommendations as to casinos and racetracks.

Petitioner filed a Reply Declaration on April 17, 2026. It was reserved on Respondent and Minor's Counsel the same day. Petitioner seeks further clarifying orders as well. Petitioner requests that the term notice or provide information requires that notice or provision of information to be in writing. Petitioner requests the minor have access to a smart watch or smart device for communication and safety purposes. Petitioner proposes changes to provisions 6.b. and 6.d.. Petitioner requests Kristin Kaminski or other mutually agreed licensed provider for family therapy.

Minor's Counsel has not submitted a declaration.

The court has read and considered the filings as outlined above. The court adopts the recommendations as set forth in the March 26th 3111 report with the following modifications. All notice and provision of information shall be in writing utilizing the co-parenting application Talking Parents. The parties are to continue to use the current

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exchange location for non-school exchanges. For any overnights away from the parties' primary residence home, the parties are to provide the other parent written notice and itinerary including the address where the minor will be staying via the co-parenting application. As to 6.b. - for overnights not exceeding three nights, notice is to be provided as soon as practicable. For overnights exceeding three nights, notice shall be at least seven days prior to departure. As to 6.d. - written notice for out of state travel is required not later than seven days prior to departure, absent an emergency or unforeseen circumstances which would make further advance notice impossible. The notice shall include travel dates, destination, the address where the minor will be staying overnight, and a reliable method for contact.

The court is not ordering the minor to have a smart watch or smart device for communication. The parties are to ensure contact with the other parent as set forth in the recommendations.

As to the provisions of 8.b., the minor is not to be on casino floors or other places where children are prohibited in a casino or racetrack.

Kristin Kaminski shall be the family therapist if available. If Ms. Kaminski is not available, Minor's Counsel shall select the family therapist.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #21: THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MARCH 26TH 3111 REPORT WITH THE FOLLOWING MODIFICATIONS. ALL NOTICE AND PROVISION OF INFORMATION SHALL BE IN WRITING UTILIZING THE CO-PARENTING APPLICATION TALKING PARENTS. THE PARTIES ARE TO CONTINUE TO USE THE CURRENT EXCHANGE LOCATION FOR NON-SCHOOL EXCHANGES. FOR ANY OVERNIGHTS AWAY FROM THE PARTIES' PRIMARY RESIDENCE HOME, THE PARTIES ARE TO PROVIDE THE OTHER PARENT WRITTEN NOTICE AND ITINERARY INCLUDING THE ADDRESS WHERE THE MINOR WILL BE STAYING VIA THE CO-PARENTING APPLICATION. AS TO 6.B. - FOR OVERNIGHTS NOT EXCEEDING THREE NIGHTS, NOTICE IS TO BE PROVIDED AS SOON AS PRACTICABLE. FOR OVERNIGHTS EXCEEDING THREE NIGHTS, NOTICE SHALL BE AT LEAST SEVEN DAYS PRIOR TO DEPARTURE. AS TO 6.D. - WRITTEN NOTICE FOR OUT OF STATE TRAVEL IS REQUIRED NOT LATER THAN SEVEN

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DAYS PRIOR TO DEPARTURE, ABSENT AN EMERGENCY OR UNFORESEEN CIRCUMSTANCES WHICH WOULD MAKE FURTHER ADVANCE NOTICE IMPOSSIBLE. THE NOTICE SHALL INCLUDE TRAVEL DATES, DESTINATION, THE ADDRESS WHERE THE MINOR WILL BE STAYING OVERNIGHT, AND A RELIABLE METHOD FOR CONTACT.

THE COURT IS NOT ORDERING THE MINOR TO HAVE A SMART WATCH OR SMART DEVICE FOR COMMUNICATION. THE PARTIES ARE TO ENSURE CONTACT WITH THE OTHER PARENT AS SET FORTH IN THE RECOMMENDATIONS.

AS TO THE PROVISIONS OF 8.B. THE MINOR IS NOT TO BE ON CASINO FLOORS OR OTHER PLACES WHERE CHILDREN ARE PROHIBITED IN A CASINO OR RACETRACK.

KRISTIN KAMINSKI SHALL BE THE FAMILY THERAPIST IF AVAILABLE. IF MS. KAMINSKI IS NOT AVAILABLE, MINOR'S COUNSEL SHALL SELECT THE FAMILY THERAPIST.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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22. ALLISON SMITH WALKER V. MELVIN WALKER

26FL0139

Respondent filed a Request for Order (RFO), on February 26, 2026, seeking *Epstein* credits in the amount of \$1,585.45. Petitioner was personally served with some, but not all the required forms on March 3, 2026.

Petitioner filed a Responsive Declaration on April 8, 2026. Petitioner is seeking reimbursement for post separation expenses she incurred.

Respondent filed Responsive Declaration, which he has titled a Reply Declaration on April 16, 2026. Although it was stamped as Late Filed, the court finds as a Reply Declaration, it is timely. Petitioner was served on April 17, 2026

The court finds these are issues for trial as the court will need to take evidence and testimony from the parties. The court reserves on both parties' requests for reimbursement until the time of trial.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #22: THE COURT FINDS THESE ARE ISSUES FOR TRIAL AS THE COURT WILL NEED TO TAKE EVIDENCE AND TESTIMONY FROM THE PARTIES. THE COURT RESERVES ON BOTH PARTIES' REQUESTS FOR REIMBURSEMENT UNTIL THE TIME OF TRIAL.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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